cease in judgment of law. And so is the diversity. Wherefore the opinion of the Court was, that Sir Thomas Wroth should have the annuity for his life from the time that the prince became King, notwithstanding that he is discharged by act of law from doing the service, if so be the other point which remains to be discussed does not make against him.

4 *point. King H.* 8. *grants an annuity to one for life, for the exercise of the office of usher of the Privy Chamber to Prince Edward his son, this annuity is not determined by the death of King H.* 8. *but shall bind his successors, although no mention was made of them in the patent, for it was granted in the politic capacity of the King, which never dies. S. P. Jenk.* 209. *pl.* 41. *Vin. Abr. tit. Prerogative Z. d. pl.* 5. *in margine. See Dy.* 92. *pl.* 19.—**[457]** And as to this point, viz. whether the grant of the annuity shall be void by the death of King Henry 8. because his heirs or successors were not mentioned in the grant, all the Barons were of opinion that the grant shall bind the heirs and successors of the King, notwithstanding they were omitted out of the patent, because he granted the annuity as King, and the body politic of the King is charged, which body politic is perpetual, and has perpetual continuance, and never dies, although the body natural, in which the body politic is reposed, dies, as other bodies natural do; for the body politic is a body immortal, and not subject to death, and therefore if he that is King dies, (a) such death is not called in law the death of the King, but the demise of the King, not signifying by the word (*demise*) that the body politic of the King is dead, (for death extinguishes life in every thing it comes to, which it does not with regard to the body politic of the King) but that there is a separation of the two bodies, and that the body politic has left the body natural now dead or now removed from the dignity-Royal, and is conveyed over to, and reposed in, another body natural. And then if the body, which granted the annuity here to Sir Thomas Wroth, is not dead nor extinguished, but continues unchangeably all the life of Sir Thomas Wroth, (as it does here, for the body politic was the body that granted the annuity) there is no manner of cause to determine the annuity. (b) And if an abbot with the assent of the convent, by deed under their common seal, grants an annuity to another in fee, and does not say that he grants it for him and his successors, and the abbot dies, and a new successor is chosen, he shall be charged with the annuity, for the grant of the abbot with the assent of the whole convent charges all the corporation, which has perpetual continuance, and therefore the annuity shall have continuance. So an obligation made by the predecessor with the assent of the convent, without recompense or other cause, shall bind the successors, though they be not named, *causâ qua supra.* (c) But no man's heir shall be charged by the obligation, or grant of annuity, or warranty of his ancestor, unless the heir is expressly mentioned in the obligation, grant, or warranty, because the obligation, &c. came from the body natural, which body natural being dissolved by death, the charge shall also be dissolved, and even if the heirs are mentioned in the obligation, &c. yet they shall not be charged without assets from the same ancestor. But this reason does not hold place where the body that makes the grant or lien has perpetual continuance, as it has in our case, and also assets cannot be said to be wanting in the Crown, (if it was necessary to have assets, as it is not in our case. (d) And note, if the King grants to an abbot a license to purchase in mortmain, and dies, this license shall serve him to purchase in the time of another King, as it appears in the register in the writ of *ad quod damnum*, where there is a special writ in such case, which writ F. N. B. recites in the writ of *ad quod damnum*, and there makes an observation that a license

(a) See *ante* 177 (c), and the books there cited.

(b) Vin. Abr. tit. Annuity B. pl. 3. *in notis.*

(c) Bract. 37. b. Britt. 64. b. M. 2 H. 4. 13. pl. 54. Bro. Annuity 13. H. 21 H. 7. 1. b. Bro. Charge 54. H. 21 H. 7. 4. a. per Frowick, C.J. Bro. Estates 65. Dy. 14. pl. 69. 23. pl. 142. 344. b. pl. 2. 1 Rol. Abr. 226. B. pl. 1. Co. Litt. 144. b. 386. a. Poph. 87. 154. 1 Finch 100. 2 Finch 119. Godolph. Orph. Leg. 201. § 9. Cowel's Inst. 171.

(d) Bro. Prerogative 106. F. N. B. 223. g. Co. Litt. 52. b. 1 Rol. Abr. 332. pl. 6. Lane 74. 102. Palm. 72. Hardr. 444. 1 Freem. 89. 1 Bac. Abr. 204. Vin. Abr. tit. Prerogative, J. c. 3. pl. 5.

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